

BEFORE THE IOWA BOARD OF SOCIAL WORK

Re:	)	CASE NO. 15-0144
Social Work Bachelor's Level License of	)	
JENNIFER MACCORMICK	)	SETTLEMENT AGREEMENT
License No. 04898	)	AND FINAL ORDER
Respondent.	)	

Pursuant to Iowa Code sections 17A.12(5) and 272C.3(4) (2015), and 645 IAC 12, the Iowa Board of Social Work ("Board") and Jennifer MacCormick ("Respondent") enter into the following Settlement Agreement and Final Order ("Order") to settle a contested case currently pending before the Board.

The allegations contained in the Statement of Charges against Respondent shall be resolved without proceeding to hearing, as the Board and Respondent stipulate as follows:

1. The Board filed a Notice of Hearing and Statement of Charges on November 9, 2015.
2. The Board has jurisdiction over the parties and the subject matter of these proceedings.
3. Respondent admits the allegations in the Statement of Charges and acknowledges that the allegations, if proven in a contested case proceeding, would constitute grounds for the discipline agreed to in this Order.
4. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to hearing before the Board on the charges, but Respondent waives the right to hearing and all attendant rights, including the right to appeal or seek judicial review of the Board's actions, by freely and voluntarily entering into this Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.
5. Respondent acknowledges that she has the right to be represented by counsel on this matter.
6. Respondent agrees that the State's counsel may present this Order to the Board and may have *ex parte* communications with the Board while presenting it.
7. This Order is subject to approval by a majority of the full Board. If the Board does not approve this Order, it shall be of no force or effect to either party, and shall not be admissible for any purpose in further proceedings in this matter. If the Board approves this Order, it shall be the full and final resolution of this matter.
8. This Order shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.
9. This Order shall not be binding as to any new complaints received by the Board.

10. Respondent understands the Board is required by federal law to report any adverse action to the National Practitioner Data Bank.

11. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.

12. The Board's approval of this Order shall constitute a FINAL ORDER of the Board.

IT IS THEREFORE ORDERED:

13. Respondent is hereby **CITED** for failing to submit the biennial report of continuing education in response to an audit and **WARNED** that Respondent's failure to comply with the law governing the practice of social work in Iowa could result in further discipline.

14. Respondent agrees to pay a civil penalty in the amount of two hundred fifty dollars (\$250). The civil penalty shall be made payable to the Treasurer of Iowa and paid within sixty (60) days of the Board's approval of this Order. All civil penalty payments shall be deposited into the State of Iowa general fund.

15. Respondent has now submitted documentation of twenty-seven (27) hours of continuing education. Respondent shall complete three (3) hours of continuing education in ethics, in accordance with the specifications of 645 IAC 281. Said continuing education must be completed within sixty (60) days of Board approval of this Order. These continuing education hours cannot be used as part of the continuing education hours or ethics requirement Respondent is required to obtain for the 2015-2016 biennium. Respondent shall provide copies of all certificates of completion to the Board as proof of successful completion of this requirement within sixty (60) days of Board approval of this Order. Respondent is responsible for all costs associated with obtaining the required continuing education in ethics.

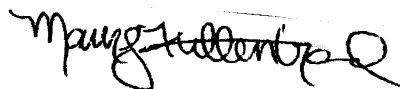
16. The civil penalty and the documentation required to be submitted to the Board under paragraphs 14 and 15, should be mailed to the Iowa Board of Social Work, Attn: Tony Alden, Bureau of Professional Licensure, Iowa Department of Public Health, Lucas State Office Building—5th Floor, 321 East 12th St., Des Moines, IA 50319.

17. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 147, 154C, and 272C and 645 IAC 13 and 283.

This Settlement Agreement and Final Order is voluntarily submitted by Respondent to the Board for its consideration on the 13 day of January, 2016.


JENNIFER MACCORMICK
Respondent

This Settlement Agreement and Final Order is approved by the Iowa Board of Social Work on the 8th day of February, 2016.



Chairperson
Iowa Board of Social Work

Copy to:

Laura Steffensmeier
Assistant Attorney General
Licensing & Administrative Law Division
Iowa Department of Justice
Hoover Building, 2nd Floor
Des Moines, IA 50319